

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 907

Introduced by Juarez, 5; Conrad, 46; Guereca, 7; McKinney, 11; Quick, 35;
Rountree, 3; Spivey, 13.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to immigration; to provide for community safe
- 2 spaces; to define terms; to prohibit entry by law enforcement
- 3 officers into community safe spaces to enforce immigration law as
- 4 prescribed; to provide for inadmissibility of evidence; to provide
- 5 severability; and to declare an emergency.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) For purposes of this section:

2 (a) Community safe space means any:

3 (i) Hospital or other facility providing healthcare services;

4 (ii) School, preschool, or postsecondary educational institution;

5 (iii) Library;

6 (iv) Designated disaster or emergency response site;

7 (v) Courthouse;

8 (vi) Homeless shelter, rape crisis center, domestic violence
9 shelter, family justice center, or human trafficking service provider;

10 (vii) Legal service provider;

11 (viii) Community resource center;

12 (ix) Place of religious worship; and

13 (x) Child care facility;

14 (b) Judicial officer means:

15 (i) A judge who is authorized under Article III of the Constitution
16 of the United States of America; or

17 (ii) A judge or clerk magistrate described in section 29-812; and

18 (c) Law enforcement officer means:

19 (i) A law enforcement officer as defined in section 81-1401;

20 (ii) A federal law enforcement officer;

21 (iii) A member of the National Guard on active service by direction
22 of the Governor during a period of emergency or civil disorder;

23 (iv) A member of a tribal police department or federal law
24 enforcement officer duly authorized to assert law enforcement powers by a
25 tribe in the State of Nebraska; and

26 (v) Any person acting on behalf of, or in concert with, any law
27 enforcement officer described in subdivision (1)(c)(i), (ii), (iii), or
28 (iv) of this section; and

29 (2) Absent exigent circumstances, an employee or agent of a
30 community safe space shall not consent to allow a law enforcement officer
31 to enter a nonpublic area of a community safe space for the purpose of

1 enforcing immigration law without a warrant described in subsection (3)
2 of this section.

3 (3) A law enforcement officer enforcing immigration law shall only
4 be permitted to enter a nonpublic area of a community safe space:

5 (a) With a search warrant issued by a judicial officer; or

6 (b) With an arrest warrant issued by a judicial officer if the law
7 enforcement agent has actual knowledge that the subject of the arrest
8 warrant is physically present in the community safe space.

9 (4) No administrative arrest, search warrant, or removal order
10 issued by the United States Department of Homeland Security or any other
11 state or federal agency shall be sufficient to enter a nonpublic area of
12 a community safe space to enforce immigration law.

13 (5) Any evidence secured in violation of this section shall be
14 inadmissible at any trial or evidentiary hearing in this state.

15 **Sec. 2.** If any section in this act or any part of any section is
16 declared invalid or unconstitutional, the declaration shall not affect
17 the validity or constitutionality of the remaining portions.

18 **Sec. 3.** Since an emergency exists, this act takes effect when
19 passed and approved according to law.